



CHAPTER xlviii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Bootle Gravesend Huddersfield Leek Llanelly and Workington and the North East Durham Joint Small-pox Hospital District. A.D. 1914.

[8th July 1914.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. Sections twenty-five twenty-six and twenty-seven of the Municipal Corporations Act 1882 and section two hundred and forty-six of the Public Health Act 1875 shall be deemed not to have operated in the Borough of Llanelly and the provisions of Article I. of the Order relating to Llanelly shall be deemed as from the date of the creation of that Borough to have applied to any accounts of the Mayor Aldermen and Burgesses of the Borough acting by the Council (herein-after referred to as "the Corporation.") or of the treasurer of that Borough or of the officers of the Corporation. Audit of accounts of Corporation of Llanelly.

3. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1914. Short title.

A.D. 1914.

S C H E D U L E.

BOROUGH OF BOOTLE.

Bootle Order.

*Provisional Order for altering the Bootle Corporation
Act 1890.*

To the Mayor Aldermen and Burgesses of the Borough of
Bootle ; —

And to all others whom it may concern.

53 & 54 Vict.
c. ccxix.

60 & 61 Vict.
c. cxliii.

WHEREAS the Borough of Bootle (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Bootle Corporation Act 1890 (herein-after referred to as "the Local Act") as altered by the Bootle Order 1897 (herein-after referred to as "the Order") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897 are in force in the Borough ;

And whereas by Section 50 of the Local Act it is provided amongst other things that if it appears to the Corporation by the report of the surveyor or inspector of nuisances or medical officer of health that any ashpit belonging to any house or part of a house within the Borough is prejudicial to health or is inconveniently situated or is ill-constructed or is not water-tight or that for other sanitary reasons it is desirable that the same should be wholly or partially filled up or removed the Corporation may if they think fit by written notice require the owner or occupier of such house or part of a house within a reasonable time to be specified in such notice to cause such ashpit to be wholly or partially filled up or removed and in cases where it appears by such report that any ashpit is used in common by the occupiers of two or more houses or parts of houses such notice for the filling up or removal of such common ashpit may be served on the owners or occupiers respectively who have the right to use the same and the cost of filling up or removing such ashpit shall be defrayed by the owners thereof in such proportion as the Corporation shall determine and it is by the said section further provided that if any such notice as is mentioned in the section is not complied with the Corporation may do the work required to be done by the notice and may recover from the owner or owners the expenses incurred by the Corporation in so doing ;

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

And whereas it is proposed that the Corporation should be enabled to contribute towards the cost of the removal of fixed ashpits belonging to houses or parts of houses within the Borough and the substitution of moveable ashpits therefor in certain cases and to borrow moneys for the purpose of such contributions ;

A.D. 1914.
Bootle Order.

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid in the manner herein-after set forth ;

And whereas by the Order provision was made for the raising and repayment of moneys which the Corporation were thereby authorised to borrow and with respect to the costs of local inquiries :

Now therefore We the Local Government Board in the exercise of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid shall be further altered so that the following provisions shall have effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. Section 50 of the Local Act shall have effect as if the following proviso were added thereto:—

Enabling Corporation to contribute towards expenses of substituting moveable ashpits for fixed ashpits.

“ Provided that where in pursuance of the provisions of this section a fixed ashpit which has been reported in writing by the medical officer of health to be by reason of its situation prejudicial to health has been removed and a moveable ashpit conforming to the requirements of the byelaws for the time being in force in the Borough has been substituted therefor the Corporation may contribute an amount not exceeding one-half of the expenses thereby incurred.”

Art. II. Any moneys contributed by the Corporation in pursuance of the provisions of Section 50 of the Local Act as altered by Article I. of this Order shall so far as they are not defrayed by means of borrowed moneys be paid out of the district fund and general district rate of the Borough.

Cost of contributions to be charged to district fund and district rate.

Art. III. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the district fund and general district rate of the Borough such sums not exceeding in the whole the sum of one thousand eight hundred pounds as may from time to time be necessary for the purpose of making any contributions under Section 50 of the Local Act as altered by Article I. of this Order.

Borrowing powers for purposes of contributions.

[Ch. xlviii.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1914.

A.D. 1914.

Bootle Order.

Application of provisions of the Order to purposes of this Order.

Short titles.

Art. IV. The provisions of Articles XII. to XIX. and of Article XXI. of the Order shall apply as if the said Articles were herein re-enacted and in terms made applicable respectively to the moneys borrowed under this Order and to any local inquiry held with reference to any of the purposes of this Order.

Art. V. This Order may be cited as the Bootle Order 1914 and the Order and this Order may be cited together as the Bootle Orders 1897 and 1914.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

BOROUGH OF GRAVESEND.

*Gravesend
Order.*

*Provisional Order for partially repealing and altering the
Gravesend Improvement Act 1856.*

To the Mayor Aldermen and Burgesses of the Borough of
Gravesend;—

And to all others whom it may concern.

WHEREAS the Borough of Gravesend (herein-after referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses acting by the council (herein-after referred to as “the
Corporation”) are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875 ;

19 Vict.
c. xxvi.

And whereas the unrepealed provisions of the Gravesend Improve-
ment Act 1856 (herein-after referred to as “the Local Act”) are in
force in that part of the Borough which is referred to in Section 4 of
the Local Act ;

And whereas by Section 37 of the Local Act certain of the pro-
visions of the Towns Improvement Clauses Act 1847 are incorporated
with the Local Act ;

And whereas by Sections 54 and 56 of the Local Act provision is
made with regard to the width of new streets and the levels of the
ground floors of houses ;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to partially

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

repeal alter or amend the Local Act in the manner herein-after set forth: A.D. 1914.

*Gravesend
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (hereinafter referred to as "the commencement of this Order") the Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say:— 38 & 39 Vict.
c. 55.

Art. I. The provisions of the Local Act which are specified or set forth in the Schedule to this Order shall be repealed. Repeal of Sec-
tions of Local
Act.

Art. II. This Order may be cited as the Gravesend Order 1914. Short title.

The SCHEDULE above referred to.

PROVISIONS OF LOCAL ACT TO BE REPEALED.

Section 54 so far as that section relates to the width of new streets.

Section 56 and

Section 37 so far as it incorporates the under-mentioned provisions of the Towns Improvement Clauses Act 1847:—

Section 33 so far as that section relates to any drain of a building which drain is constructed after the commencement of this Order.

Sections 36 to 41 inclusive.

Section 42 so far as that section relates to the situation and construction of privies and ashpits.

Sections 57 to 60 inclusive.

Section 63.

Sections 84 to 86 inclusive so far as those sections relate to procedure in connection with or consequent upon the fixing of the level of a new street.

Section 109 except so far as that section relates to buildings existing at the commencement of this Order and

Sections 110 to 112 inclusive.

Given under the Seal of Office of the Local Government Board
this Thirtieth day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

[Ch. xlviii.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1914.

A.D. 1914.

BOROUGH OF HUDDERSFIELD.

*Huddersfield
Order.*

*Provisional Order for partially repealing and altering
the Huddersfield Improvement Act 1871.*

To the Mayor Aldermen and Burgesses of the Borough of
Huddersfield ;—

And to all others whom it may concern.

34 & 35 Vict.
c. cli.
39 & 40 Vict.
c. c.

WHEREAS the Borough of Huddersfield (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and there are in force in the Borough the unrepealed provisions of the Huddersfield Improvement Act 1871 as altered by the Huddersfield Waterworks and Improvement Act 1876 (each of which Acts is herein-after referred to as the Act of the year in which it was passed) and by certain other Local Acts and by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

And whereas by Section 43 of the Act of 1871 provision is made with regard to the apportionment of certain expenses incurred by the Corporation in the execution of the provisions of that Act (which expenses are in the Act and herein-after referred to as "new street expenses") and by subsection (4) of the said section the apportionment is binding and conclusive on all parties unless the same is by written notice disputed within the time allowed by the said subsection and by subsection (5) of the said section any such dispute is required to be settled by arbitration ;

And whereas by Section 388 of the Act of 1871 it is enacted that except as expressly otherwise provided in that Act Sections 25 to 37 inclusive of the Lands Clauses Consolidation Act 1845 shall apply for the determination of any question directed by the Act of 1871 to be determined by arbitration ;

And whereas by Section 76 of the Act of 1876 further provision is made with regard to the apportionment of new street expenses ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Act of 1871 as altered as aforesaid in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

commencement of this Order") the Act of 1871 as altered as aforesaid shall be partially repealed and altered so that the following provisions shall have effect that is to say:—

A.D. 1914.
*Huddersfield
Order.*

Art. I.—(1) Subsection (5) of Section 43 of the Act of 1871 shall be repealed and in substitution therefor the following provisions shall take effect that is to say:—

Settlement
of disputed
apportion-
ments.

“ (5) Any such dispute shall be settled by the arbitration of
“ a single arbitrator and if the parties to the dispute fail
“ to agree on the appointment of an arbitrator he shall be
“ appointed on the application of either party by the Local
“ Government Board and subject as aforesaid the pro-
“ visions of the Arbitration Act 1889 shall apply to any
“ such arbitration.”

(2) The Act of 1871 as altered as aforesaid shall have effect as if the provisions by subdivision (1) of this Article substituted for subsection (5) of Section 43 of the Act of 1871 were made applicable to the settlement of any dispute referred to in the said subsection which is pending at the commencement of this Order and in respect of which an arbitrator has not at that date been appointed under the provisions applied by Section 383 of the Act of 1871 or otherwise.

Art. II. This Order may be cited as the Huddersfield Order Short title.
1914.

Given under the Seal of Office of the Local Government Board
this Eleventh day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

URBAN DISTRICT OF LEEK.

Provisional Order for partially repealing and altering the
Leek Improvement Act 1855.

Leek Order.

To the Urban District Council of Leek;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Leek (herein-after referred to as “the Council”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Leek (herein-after

[Ch. xlviii.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1914.

A.D. 1914. referred to as "the District") and there are in force in the District
Leek Order. the unrepealed provisions of the Leek Improvement Act 1855 (herein-
 18 & 19 Vict. after referred to as "the Local Act") as altered by certain Provisional
 c. cxxxii. Orders duly confirmed by Parliament which do not affect the subject-
 matter of this Order;

And whereas by Section 100 of the Local Act certain of the pro-
 visions of the Towns Improvement Clauses Act 1847 are incorporated
 with the Local Act;

And whereas by Sections 104 and 109 of the Local Act provision
 is made with regard to sewers and drains and with regard to the
 levels of houses and the situation and construction of privies and
 cesspools in connexion therewith;

And whereas the Council have made application to the Local Govern-
 ment Board for the issue of a Provisional Order to partially repeal alter
 or amend the Local Act as altered as aforesaid in the manner herein-
 after set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
 c. 55. the powers given to Us by Section 303 of the Public Health Act 1875
 and by any other Statutes in that behalf do hereby order that from
 and after the date of the Act of Parliament confirming this Order the
 Local Act as altered as aforesaid shall be partially repealed and altered
 so that the following provisions shall take effect that is to say:—

Byelaws. Art. I. Notwithstanding the provisions of the Local Act which are
 specified or set forth in the Schedule to this Order and are herein-
 after referred to as "the Scheduled provisions" the Council may
 forthwith make byelaws with respect to any of the matters to which
 the Scheduled provisions relate and as to which byelaws may be made
 under and in accordance with the Public Health Act 1875 and any
 Act amending or extending that Act and the last-mentioned Acts shall
 accordingly apply to the byelaws made in pursuance of this Article.

Repeal of provisions of Local Act. Art. II. From and after the date of the confirmation of any
 byelaws made and confirmed in pursuance of Article I. of this Order
 (herein-after referred to as "the commencement of byelaws") the
 Scheduled provisions shall be repealed.

Short title. Art. III. This Order may be cited as the Leek Order 1914.

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

The SCHEDULE above referred to.

A.D. 1914.

Leek Order.

PROVISIONS OF LOCAL ACT TO BE REPEALED.

Section 104 so far as that section relates to any drain of a building which drain is constructed after the commencement of byelaws.

Section 109 and

Section 100 so far as it incorporates the under-mentioned provisions of the Towns Improvement Clauses Act 1847:—

Section 33 so far as that section relates to any drain of a building which drain is constructed after the commencement of byelaws.

Section 37.

Section 42 so far as that section relates to the situation and construction of privies and ashpits.

Section 63.

Sections 84 to 86 inclusive so far as those sections relate to procedure in connexion with or consequent upon the fixing of the level of a new street.

Section 109 except so far as that section relates to buildings existing at the commencement of byelaws and

Sections 110 to 112 inclusive.

Given under the Seal of Office of the Local Government Board
this Thirty-first day of March One thousand nine hundred
and fourteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

BOROUGH OF LLANELLY.

*Provisional Order for altering the Llanelly Local Board
Act 1888.*

*Llanelly
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Llanelly;—

And to all others whom it may concern.

WHEREAS by a Royal Charter of Incorporation the Urban District
of Llanelly was created as from the Ninth day of November One
thousand nine hundred and thirteen a Municipal Borough by the

[Ch. xlviii.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1914.

A.D. 1914. name of the Borough of Llanelly (herein-after referred to as "the Borough");

*Llanelly
Order.*

And whereas the Borough is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

51 & 52 Vict. And whereas there are in force in the Borough the unrepealed
c. clxxv. provisions of the Llanelly Local Board Act 1888 (herein-after referred to as "the Local Act") as altered by a Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order;

And whereas by Section 30 of the Local Act provision was made with respect to the audit of the accounts under that Act of the Local Board who were predecessors of the Corporation;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid shall be further altered so that the following provisions shall take effect that is to say:—

*Audit of
Borough
accounts.*

Art. I.—(1) All accounts of the Corporation and of the treasurer of the Borough and of the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of another borough or with a County Council or with a District Council or a Parish Council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under Sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein reenacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

Provided that for the purposes of this Article the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888. A.D. 1914.
Llanelly
Order.

(2) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings;

(b) Pay the reasonable expenses of the Corporation in connexion with the presentation of the freedom of the Borough to persons whom they resolve to admit as honorary freemen in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the Borough.

Art. II. This Order may be cited as the Llanelly Order 1914. Short title.

Given under the Seal of Office of the Local Government Board
this Sixth day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.

H. C. MONRO Secretary.

BOROUGH OF WORKINGTON.

Provisional Order for altering the Local Act 3 Vict. c. xlv. *Workington*
Order.

To the Mayor Aldermen and Burgesses of the Borough of
Workington ;—

And to all others whom it may concern.

WHEREAS the Borough of Workington (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as “the Corporation”) are the Urban District Council and the local authority within the meaning of the Public Health Act 1875;

And whereas there are in force in the Borough the unrepealed provisions of a Local Act passed in the third year of the reign of Her late Majesty Queen Victoria and intituled “An Act for paving
“cleansing watching and otherwise improving the Town of Workington

[Ch. xlviii.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1914.

A.D. 1914.
 —
Workington
Order.

“ in the County of Cumberland ” (herein-after referred to as “ the Local Act ”) as altered by another Local Act and by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order ;

And whereas by the Local Act the predecessors of the Corporation were empowered to manufacture and supply gas and by Section 36 of the said Act were authorised to purchase land not exceeding two statute acres of superficial content for the purpose of erecting and making suitable and necessary erections buildings works and apparatus for the manufacturing or preparing of gas ;

And whereas the Corporation or their predecessors have acquired for the purposes of their gas undertaking the lands described in the schedule to this Order ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act as altered as aforesaid in the manner herein-after set forth :

38 & 39 Vict.
 c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid shall be further altered so that the following provisions shall take effect that is to say :—

Authorisa-
 tion of pur-
 chase of lands
 for gas pur-
 poses.

Art. I.—(1) Section 36 of the Local Act shall be deemed to have always had effect and shall have effect as if the words “ not exceeding two statute acres of superficial content ” had not been inserted therein.

(2) The Corporation shall not purchase otherwise than by agreement any lands for the purposes of their gas undertaking and the lands which in addition to those described in the schedule to this Order the Corporation may purchase by agreement for the said purposes shall not exceed in the whole five acres.

Construction
 of works &c.

Art. II. The Corporation may maintain repair renew and continue and from time to time construct extend enlarge and alter any gas-works upon the lands described in the schedule to this Order or subject to the provisions of this Order upon any other lands which may be purchased by the Corporation in pursuance of this Order.

Corporation
 not to manu-
 facture gas or
 residual pro-
 ducts except
 on certain
 lands.

Art. III.—(1) The Corporation shall not manufacture gas nor manufacture convert or prepare any residual products on any lands other than the lands described in the schedule to this Order.

(2) The Corporation shall not store gas or any residual products on any lands (other than the lands described as aforesaid) which shall be situated within three hundred yards of any dwelling-house without

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

the previous consent in writing of the owner lessee and occupier of that dwelling-house. A.D. 1914.

*Workington
Order.*

Interpreta-
tion.

Art. IV. In this Order—

- (1) The expression “residual products” includes coke culm asphaltum pitch tar oil ammoniacal liquor or any other refuse or residual matter or thing produced in or resulting from the manufacture of gas ;
- (2) The expression “gasworks” includes any building structure machinery apparatus or work constructed or provided for use in or for the purposes of any process or operation connected with the manufacture or storage of gas or the manufacture conversion preparation or storage of any residual products or otherwise for any purpose of the gas undertaking.

Art. V. This Order may be cited as the Workington Order 1914. Short title.

The SCHEDULE above referred to.

(1) All those two pieces or parcels of land situate on either side of Lawrence Street in the Borough and containing together 1·498 acres or thereabouts and bounded on or towards the east by Havelock Road on or towards the north by Stanley Street on or towards the west by Winder Street and on or towards the south by a tramway line and other property belonging or reputed to belong to Alan de Lancy Curwen.

(2) All that piece or parcel of land situate at Clay Flatts in the Borough and containing 1·489 acres or thereabouts and bounded on or towards the east by Gas Street on or towards the north by land belonging or reputed to belong to Alan de Lancy Curwen on or towards the west by land belonging or reputed to belong to Ralph Falcon-Cooke and on or towards the south by land belonging or reputed to belong to Alan de Lancy Curwen.

Given under the Seal of office of the Local Government Board
this Thirtieth day of March One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

A.D. 1914.
—

NORTH EAST DURHAM JOINT SMALL-POX
HOSPITAL DISTRICT.

*North East
Durham
Small-pox
Hospital
Order.*

Provisional Order for altering certain Confirming Acts.

To the North East Durham Joint Small-pox Hospital Board ; —

To the Mayor Aldermen and Burgesses of the Borough of South Shields ; —

To the Mayor Aldermen and Burgesses of the Borough of Sunderland ; —

To the Mayor Aldermen and Burgesses of the Borough of Jarrow ; —

To the Urban District Council of each of the Urban Districts of Felling Hebburn and Southwick-on-Wear ; —

To the Rural District Council of each of the Rural Districts of South Shields and Sunderland ; —

And to all others whom it may concern.

4 Edw. 7.
c. cxix.
10 Edw. 7. &
1 Geo. 5.
c. lxxxvii.

WHEREAS by virtue of the North East Durham Joint Small-pox Hospital Orders 1904 and 1910 which were respectively confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1904 and the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1910 (each of which Orders is herein-after referred to as the Order of the year in which it was made and both of which Orders and Confirming Acts are herein-after referred to respectively as "the Orders" and "the Confirming Acts") the Boroughs of South Shields and Jarrow the Urban Districts of Felling Hebburn and Southwick-on-Wear and the Rural Districts of South Shields and Sunderland constitute the United District called the North East Durham Joint Small-pox Hospital District (herein-after referred to as "the United District") of which the governing body is the North East Durham Joint Small-pox Hospital Board (herein-after referred to as "the Joint Board") ;

And whereas by virtue of the Orders the Joint Board now consists of seven ex-officio members and of nineteen elective members elected

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

by the Councils of the above-named Boroughs and Urban and Rural Districts ;

And whereas it is expedient that the Borough of Sunderland should be included in the United District and that the Orders should be altered as herein-after provided :

A.D. 1914.

*North East
Durham
Small-pox
Hospital
Order.*

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the Thirtieth day of September One thousand nine hundred and fourteen (herein-after referred to as "the commencement of this Order") the Confirming Acts so far as they relate to the Orders shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. The United District shall be extended so as to include the Borough of Sunderland and subject to the provisions of this Order references in the Orders to the Constituent Districts shall be deemed to include the Borough of Sunderland and the references in the Orders to the Constituent Authorities shall be deemed to include the Mayor Aldermen and Burgesses of the Borough of Sunderland acting by the council.

Extension
of United
District.

Art. II. Article IV. of the Order of 1904 as altered by the Order of 1910 shall be further altered so that the Joint Board shall consist of one ex-officio member and of twenty-nine elective members and the ex-officio member shall be the person described in column 3 of the Schedule hereto and the number of elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that Constituent Authority in column 4 of that Schedule.

Ex-officio
and elective
members of
Joint Board.

Art. III. The Order of 1904 shall have effect as if the word "five" were inserted in subdivision (1) of Article XII. of that Order instead of the word "three."

Increase in
number of
members to
form a quorum.

Art. IV. The Order of 1904 as altered by the Order of 1910 and by this Order shall have effect as if the Schedule to this Order were substituted for the Schedules referred to in the Orders.

Substitution
of new Sched-
ule.

Art. V. The provisions of Article XI. of the Order of 1904 shall apply to the first election by the Council of the Borough of Sunderland of the elective members to represent that Council on the Joint Board as if the election related to the filling of a vacancy occurring at the commencement of this Order.

Election of
elective mem-
bers by new
Constituent
Authority.

Art. VI.—(1) Three of the eleven members of the Joint Board representing the Council of the Borough of South Shields one of the three members representing the Council of the Borough of Jarrow one

Altering repre-
sentation of
certain Consti-
tuent Autho-
rities.

[Ch. xlviii.] *Local Government Board's* [4 & 5 GEO. 5.]
Provisional Orders Confirmation (No. 6) Act, 1914.

A.D. 1914. of the two members representing the Urban District Council of
North East Southwick-on-Wear one of the three members representing the Rural
Durham District Council of South Shields and one of the three members repre-
Small-pox senting the Rural District Council of Sunderland shall go out of office
Hospital and their places shall not be filled up and the remaining members
Order. representing those Councils upon the Joint Board and the members of
the Joint Board representing the Urban District Councils of Felling and
Hebburn whether ex-officio or elective members shall be deemed to be
elective members.

(2) The members of the Joint Board who are to go out of office
in pursuance of subdivision (1) of this Article shall be selected by
the several Constituent Authorities whose representatives they are at
the meeting of the Constituent Authority held next after the com-
mencement of this Order and the names of the persons so selected
shall be forthwith notified in writing to the Clerk to the Joint Board
by the Clerk to the Constituent Authority.

Adjustment. Art. VII. The Local Government Board upon the application of any
of the Constituent Authorities or of the Joint Board may by order
adjust as between the Constituent Authorities or as between the
Constituent Authorities and the Joint Board any expense or liability
incurred by or attaching to the Joint Board before the commencement
of this Order or any expense liability or accounts arising out of
incidental to or connected with or affected by the inclusion of the
Borough of Sunderland in the United District or any expense liability
or accounts in respect of which doubt or difference may arise after
the commencement of this Order.

Short titles. Art. VIII. This Order may be cited as the North East Durham
Joint Small-pox Hospital Order 1914 and the North East Durham Joint
Small-pox Hospital Orders 1904 and 1910 and this Order may be
cited together as the North East Durham Joint Small-pox Hospital
Orders 1904 to 1914.

[4 & 5 GEO. 5.] *Local Government Board's* [Ch. xlviii.]
Provisional Orders Confirmation (No. 6) Act, 1914.

The SCHEDULE above referred to.

A.D. 1914.
*North East
Durham
Small-pox
Hospital
Order.*

1. Name of District.	2. Name of Urban Sanitary Authority or District Council.	3. Ex-officio Member.		4. Elective Members.
		Number.	Description.	Number.
The Borough of South Shields.	The Mayor Aldermen and Burgesses of the Borough of South Shields acting by the Council.	—	—	8
The Borough of Sunderland.	The Mayor Aldermen and Burgesses of the Borough of Sunderland acting by the Council.	1	The Chairman for the time being of the Health Committee of the Corporation of Sunderland.	10
The Borough of Jarrow.	The Mayor Aldermen and Burgesses of the Borough of Jarrow acting by the Council.	—	—	2
The Urban District of Felling.	The Urban District Council of Felling.	—	—	2
The Urban District of Hebburn.	The Urban District Council of Hebburn.	—	—	2
The Urban District of Southwick-on-Wear.	The Urban District Council of Southwick-on-Wear.	—	—	1
The Rural District of South Shields.	The Rural District Council of South Shields.	—	—	2
The Rural District of Sunderland.	The Rural District Council of Sunderland.	—	—	2

Given under the Seal of Office of the Local Government Board
this Third day of April One thousand nine hundred and
fourteen.

(L.S.)

HERBERT SAMUEL President.
H. C. MONRO Secretary.

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